

Document 3 — Non-Binding Letter of Intent

Non-Binding Letter of Intent — Capital Increase into Isseksi ProjectCo

Draft for review by counsel. Square brackets denote items to be completed.

Date: [●] 2026

Between:

- [Isseksi ProjectCo / SPV — full corporate name, RC number, registered office] (the "Company" or "ProjectCo"), together with its sponsors AKANIL Development & Investment and ATLAS Portfolio Management SARL (collectively the "Sponsors"); and
- [Moroccan Financial Partner — full corporate name, RC number, registered office] (the "Investor").

1. Purpose

This Letter of Intent ("LOI") records the parties' mutual intention to negotiate, in good faith, the Investor's entry into ProjectCo as a minority financial partner through a capital increase, on the indicative terms set out below. This LOI is a framework for negotiation, not a commitment to invest or to issue shares.

2. Structure

The contemplated transaction is a capital increase into ProjectCo, a dedicated single-purpose vehicle for the current expansion phase of the ATLAS Isseksi Green Copper Production Platform. The Investor would subscribe to newly issued shares of ProjectCo. No existing founder shares are sold; no mining license is transferred; no AKANIL / HYRION technology is transferred.

3. Contribution and Stake

Total contribution: USD 3,600,000 (or its MAD equivalent as agreed), against a maximum stake of ten percent (10%) of ProjectCo's share capital after full subscription. The Sponsors retain ninety percent (90%).

4. Payment Tranches and Equity Recognition

The contribution is paid in three tranches of USD 1,200,000 each: Tranche 1 at signing / first closing; Tranche 2 after Gate 1; Tranche 3 after Gate 2 — each subject to the release conditions to be set out in the definitive documents. Equity is recognized progressively against capital actually paid: 3.33% (Tranche 1), an additional 3.33% (Tranche 2), and an additional 3.34% (Tranche 3). If a tranche is not funded, the Investor retains only the equity corresponding to capital actually paid, subject to the

shareholders' agreement. Upon full payment, the Investor's recognized 10% stake is preserved according to the shareholders' agreement.

5. Use of Proceeds

The contribution is ring-fenced for the current Isseksi expansion phase under an approved Use of Funds schedule covering, in particular: the mobile green copper processing station; quarry preparation; equipment and material handling; working capital; technical team and QA/QC; water, ESG and monitoring; digital tracking and Data Room; and legal, governance and transaction costs.

6. Reporting and Monitoring

ProjectCo will provide the Investor with a structured quarterly report every three months covering capital deployed, budget versus actual, technical and operational progress, ESG and water monitoring, Data Room updates, the risk register, and the next-quarter plan. The Investor has review and clarification rights; the Investor does not receive day-to-day operational control.

7. Future Round Priority

The Investor shall have a priority participation right in future financing rounds, subject to compliance with its obligations and without creating exclusivity over, or a veto on, the Company's future capital strategy.

8. Protected Assets

The parties acknowledge that: (a) the mining license position remains with Atlas Mining / the license holder and is not transferred; (b) AKANIL / HYRION technology and data architecture remain the property of their owners and are made available to ProjectCo by license or service agreement only; (c) geological, technical, and strategic data are accessible only through the controlled, permission-based Data Room protocol.

9. Due Diligence

Following execution of this LOI, the Investor will be granted access to the limited Data Room for confirmatory due diligence on ProjectCo, the expansion plan, the Use of Funds schedule, and the governance framework, under the Data Room access protocol.

10. Confidentiality

The parties shall keep this LOI, its terms, and all exchanged information strictly confidential, in accordance with the NDA executed between them, which remains in full force.

11. Definitive Documentation

The transaction is conditional upon the negotiation and execution of definitive documents, including: the capital increase resolution; the share subscription agreement; the shareholders' agreement; the Use of Funds schedule; the three-tranche payment protocol; the quarterly reporting protocol; the reserved matters schedule; the technology license or service agreement with AKANIL / HYRION; the operating agreement with Atlas Mining / the license holder; and the Data Room access protocol.

12. Non-Binding Nature

Except for this Section 12 and Sections 10 (Confidentiality) and 13 (Governing Law) [and Section [●] (Exclusivity), if included by the parties], this LOI is non-binding and creates no obligation to complete the transaction. Either party may withdraw from negotiations at any time without liability, subject to the surviving provisions.

13. Governing Law

This LOI and the definitive documents shall be governed by the laws of the Kingdom of Morocco, subject to review and confirmation by the parties' legal counsel, including as to dispute resolution.

Signed for ProjectCo / Sponsors: _____ Signed for the Investor:

ATLAS Isseksi ProjectCo — Moroccan Financial Partner Entry Window. Private transaction material — not a public offering, not a prospectus, not investment advice. Implied valuation figures are structuring references only; final terms subject to definitive documentation reviewed by qualified Moroccan counsel.